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IN THE UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **CAPTAIN G. SERRATO in his individual and official capacities as Commander, Dublin Area, California Highway Patrol.** Defendants.	4:26-cv-05953-ASK **DEFENDANT CAPTAIN G. SERRATO'S NOTICE OF MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT AND/OR MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES** Date: September 16, 2026 Time: 1:30 p.m. Courtroom: Judge: Magistrate Judge Honorable Ajay Krishnan. Trial Date: None Set Action Filed: July 21, 2026

NOTICE IS HEREBY GIVEN that on September 16, 2026, at 1:30 p.m., in the above-entitled Court, located at 1301 Clay Street, Oakland, California, Defendant Captain G. Serrato, in both his individual and official capacities ("Defendant") will and hereby does move this Court for an order dismissing Plaintiff's First Amended Complaint, with prejudice, and striking portions of the First Amended Complaint pursuant to Federal Rule of Civil Procedure

12(b)(6) and 12(f) and the following grounds:

1. Plaintiff's substantive due process and procedural due process claims fail as a matter of law because there is no right to a U-visa certification as signing a U-visa certification is discretionary pursuant to statute.
2. Plaintiff's First Amendment Retaliation claim fails because Plaintiff was not entitled to U-visa certification as a matter of law as pursuing a civil action does not meet the requirements for U-visa certification.
3. Plaintiff's cause of action and prayer for declaratory relief should be stricken as declaratory relief is not proper under the facts alleged within the First Amended Complaint.
4. Plaintiff's payer for a permanent injunction should be stricken as Plaintiff has not pled facts justifying injunctive relief.
5. Plaintiff's prayer for attorney fees should be stricken as Plaintiff is not entitled to attorney's fees as a *pro se* litigant.
6. Defendant is entitled to qualified immunity in his individual capacity and is therefore not liable for any of the causes of action contained in Plaintiff's First Amended Complaint;

Dated: August 26, 2026

Respectfully submitted,

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/s/ Haiyang A. Li

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Captain G. Serrato, in both his individual and official capacities

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MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Defendant Captain Gerardo Serrato ("Defendant" or "Defendant Serrato") moves to dismiss Plaintiff Brendan Newanforbi's ("Plaintiff") 42 U.S.C. Section 1983 action against him in both his individual and official capacities pursuant to Federal Rule of Civil Procedure 12(b)(6) for failure to state a claim as Plaintiff does not have any statutory right to demand a U nonimmigrant visa (U-visa) certification based upon his civil allegations against the California Highway Patrol ("CHP"). Defendant further moves pursuant to Federal Rules of Civil Procedure 12(f) to strike Plaintiff's fourth cause of action and prayer for declaratory relief, as declaratory relief is a remedy, not a separate cause of action, and declaratory relief would serve no purpose in this case. Plaintiff's prayer for attorney fees and injunctive relief should also be stricken as Plaintiff is not entitled to attorneys' fees as a *pro se* litigant and Plaintiff has not alleged facts justifying injunctive relief.

Plaintiff alleges that Captain Serrato's refusal to provide Plaintiff with a U-visa certification violated Plaintiff's Fourteenth Amendment due process rights and constituted First Amendment retaliation against Plaintiff for reporting alleged wrongdoing by CHP officers. In addition to monetary damages against Captain Serrato in his individual capacity, Plaintiff also seeks injunctive and declaratory relief against Captain Serrato in his official capacity. (Complaint ¶ 3 21-22.) As Defendant Serrato has the discretion to deny a U-visa certification request and Plaintiff's civil allegations do not meet the statutory definition of "criminal activity" within Section 679.10 of the California Penal Code and 8 U.S.C. Section 1101, each cause of action within Plaintiff's First Amended Complaint ("FAC") should be dismissed with prejudice.

II. LEGAL BACKGROUND REGARDING U-VISA CERTIFICATION.

Federal immigration law allows an individual s in the United States to apply for a U visa, when the individual has suffered "substantial physical or mental abuse" as a result of enumerated qualifying "criminal activity" and the individual has been helpful to the investigation or prosecution of the crime. 8 U.S.C. § 1101(a)(15)(U)(i),(iii) (2012). In 2000, Congress created

the U visa as part of the reauthorization of the Violence Against Women Act to provide immigrant crime victims an avenue to obtain lawful immigration status and thus encourage cooperation with law enforcement by undocumented victims of crime. Senate Rules Committee Report, 2015 California Senate Bill No. 674, California 2015-2016 Regular Session (May 31, 2015)/ As articulated by a co-sponsor of the Act's reauthorization, one of the primary objectives was to "remov[e] obstacles inadvertently interposed by our immigration laws that many [*sic*] hinder or prevent battered immigrants from fleeing domestic violence safely and prosecuting their abusers by allowing an abusive citizen or lawful permanent resident to blackmail the abused spouse through threats related to the abused spouse's immigration status." 146 Cong. Rec. S10, 192 (daily ed. Oct. 11, 2000) (statement of Sen. Hatch).

As part of his or her application, a U visa applicant must file a Form I-918, Supplement B, U Nonimmigrant Status Certification ("Form B") signed by a qualifying law enforcement agency or other certifying entity. 8 C.F.R. § 214.14(c)(2)(i) (2007). The certification must state that the applicant "has been helpful, is being helpful, or is likely to be helpful" in the investigation or prosecution of criminal activity. 8 U.S.C. § 1184(p)(1). Those qualified to certify Form B include state or local law enforcement officials. 8 C.F.R. § 214.14(a)(3). Under federal law, the denial to certify a Form B is a "discretionary act and not subject to judicial review." *Catholic Charities CYO v. Chertoff*, 622 F. Supp. 2d 865, 887 (N.D. Cal. 2008) ("[T]he statute does not contain any mandatory language with regard to actions by law enforcement officials. Specifically, there is no statutory directive to law enforcement officials to issue [law enforcement certifications]."). As a result, some law enforcement agencies declined to issue Form B certifications altogether. *See* Leslye E. Orloff et. al., Mandatory U-Visa Certification Unnecessarily Undermines the Purpose of the Violence Against Women Act's Immigration Protections and Its "Any Credible Evidence" Rules-A Call for Consistency, 11 Geo. J. Gender & L. 619, 637 (2010) (describing various police departments nationwide that stopped issuing Form B certifications).

In 2015, the California Legislature, seeking to impose certain procedural requirements on qualifying law enforcement agencies upon receipt of a Form B, added Section 679.10 to the

California Penal Code. Legislative Counsel's Digest, 2015 California Senate Bill No. 674, California 2015-2016 Regular Session (February 27, 2015). Specifically, the Penal Code now requires that upon request, a certifying entity "shall fully complete and sign the Form I-918 Supplement B certification" and "shall certify victim helpfulness . . . when the victim was a victim of a qualifying criminal activity and has been helpful, is being helpful or is likely to be helpful in the detection or investigation or prosecution of that qualifying criminal activity." Cal. Penal Code §§ 679.10(g)(1), 679.10(i)(1). The Penal Code also now requires a Form B certification denial to be accompanied with a written explanation for the denial, which "shall include specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate." *Id.* § 679.10(i)(2). However, while the Penal Code now requires that certifying entities process Form B certifications upon receipt, the Penal Code does *not* require the certifying entity to find that the requestor is a victim of a qualifying criminal activity, or to find that the requestor has been helpful. In other words, certifying entities retain discretion to deny a Form B certification request.

III. PLAINTIFF'S ALLEGATIONS AGAINST DEFENDANT SERRATO.

Plaintiff alleges that on November 1, 2024, CHP officers subjected Plaintiff to a false arrest and forced Plaintiff to submit to an involuntary blood draw through false reporting. (FAC 1:26-2:1.) Plaintiff does not allege that Defendant Serrato was involved in this incident. Rather, Plaintiff alleges that Defendant Serrato's denial of his U-visa certification based upon the November 1st incident constitutes a "separate constitutional violation" and was done in retaliation against Plaintiff for filing complaints and civil lawsuits against the CHP and individual officers. (FAC 2:16-19; 14:24.) As discussed in further detail below, Plaintiff's allegations fail to state valid causes of action and Defendant is entitled to the dismissal of all causes of action within the FAC with prejudice.

IV. ARGUMENT

A. A Motion to Dismiss is Appropriate

A defendant may assert a defense that a complaint served upon him fails to state a claim upon which relief may be granted by way of a motion pursuant to Federal Rule of Civil Procedure

12(b)(6). The purpose of a motion to dismiss under Rule 12(b)(6) is to test the legal sufficiency of the claims asserted in the complaint. *Navarro v. Black*, 250 F.3d 729, 732 (9th Cir. 2001). To survive a motion to dismiss, the plaintiff's complaint "must contain sufficient factual matter, accepted as true, to 'state a claim to relief that is plausible on its face.'" *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). A claim is facially plausible "when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Iqbal*, 556 U.S. at 678.

Although generally in reviewing a motion to dismiss the court must accept as true all allegations contained in the subject Complaint, "threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice." *Id*. at 678.

B. Plaintiff's First Cause of Action for Violation of 14th Amendment Substantive Due Process Fails as There is No Constitutional or Statutory Right To U-Visa Certification

42 U.S.C. Section 1983 "provides a cause of action for the deprivation of any rights, privileges, or immunities secured by the Constitution and laws of the United States." *Wilder v. Virginia Hosp. Ass'n*, 496 U.S. 498, 508 (1990) (internal quotation marks omitted). "Section 1983 is not itself a source of substantive rights but merely provides a method for vindicating federal rights elsewhere conferred." *Albright v. Oliver*, 510 U.S. 266, 271 (1994) (citation and internal quotation marks omitted). To state a cognizable Section 1983 claim, a plaintiff must allege the violation of a right protected by the Constitution and laws of the United States, and that the alleged deprivation was committed by a person who acted under color of state law. 42 U.S.C. § 1983. *See also Florer v. Congregation Pidyon Shevuyim, N.A*., 639 F.3d 916, 921 (9th Cir. 2011). An individual defendant is not liable on a civil rights claim unless the facts establish the defendant's personal involvement in the constitutional deprivation or a causal connection between the defendant's wrongful conduct and the alleged constitutional deprivation. *See Hansen v. Black*, 885 F.2d 642, 645 (9th Cir. 1989); *Johnson v. Duffy*, 588 F.2d 740, 743-44 (9th Cir. 1978).

a. U-Visa Certification Is Discretionary.

Here, Plaintiff's Fourteenth Amendment substantive due process cause of action fails as a matter of law because Plaintiff has no substantive due process right to U-visa certification. *See e.g. Perez Perezv. Wolf* 943 F.3d 853 [noting the decision to sign or decline to sign a certification is discretionary].) *United States v. Biao*, No. 98CR2812-BTM, 2011 WL 607087, at *1 (S.D. Cal. Feb. 11, 2011) (citing *Orosco v. Napolitano,* 598 F.3d 222, 226 (5th Cir.2010).)

Although, California Penal Code Section 679.10 requires that upon request, a certifying entity "shall fully complete and sign the Form I-918 Supplement B certification," (Cal Pen. Code, § 679.10, subd. (i)(1)), nowhere in section 679.10 is there a requirement that the certifying entity must find that the requestor is, in fact, a victim of a qualifying criminal activity, as those terms are defined in the statute, or to find that the requestor has been helpful. In fact, Section 679.10 contemplates that certifying entities retain discretion to find otherwise. The statute provides, in relevant part:

If a certifying entity *does not certify* a Form I-918 Supplement B certification, they shall provide a written explanation for the denial of the Form I-918 Supplement B certification. (§ 679.10, subd. (i)(2) (emphasis added).)

As U-visa certification is a discretionary act, Plaintiff has no substantive right to a U-visa certification.

b. Plaintiff Has Not Pled Facts Showing That He Meets the Requirements for U-Visa Certification and the "Presumption of Helpfulness" Does Not Apply.

The FAC alleges that when the U-visa statutory elements are met and the rebuttable presumption of helpfulness is unrebutted, the certifying official must sign the U-visa certification. (FAC 12:5-7.) This is improper argument that is not entitled to the presumption of truth on a Motion to Dismiss. See *Paulsen v. CNF Inc.*, 559 F.3d 1061, 1071 (9th Cir. 2009)(holding that the Court does not assume the truth of any conclusory factual allegations or legal conclusions.) Furthermore, the facts alleged within the FAC have not shown that Plaintiff meets the requirements for U-visa certification nor has Plaintiff shown that the presumption of helpfulness applies. The "presumption of helpfulness" within Penal Code Section 679.10 provides as

follows:

> "[T]here is a rebuttable presumption that a victim is helpful, has been helpful, or is likely to be helpful to the detection or investigation or prosecution of that qualifying criminal activity, if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement." (Pen. Code, § 679.10, subd. (h)

Here, Plaintiff has not met the requirements of U-visa certification because Plaintiff has alleged, at most, that he was the victim of a civil tort, not that he was a victim of "qualifying criminal activity." Furthermore, Plaintiff has not alleged that the CHP (or any other agency, for that matter) requested information and assistance into "the detection, investigation, or prosecution of a qualifying criminal activity." *See* Pen. Code, § 679.10, subd. (h). Accordingly, Plaintiff has not shown that he meets the requirements for U-visa certification, and the presumption of helpfulness is plainly not applicable when no assistance was sought in this case.

Based upon the above, the denial of Plaintiff's U-visa certification does not violate any of Plaintiff's constitutional or statutory rights and Plaintiff's improper legal argument within the FAC that Defendant did not have the discretion to deny his request for U-visa certification is without merit.

C. Plaintiff's Second Cause of Action for Procedural Due Process Fails Because Defendant Serrato's Denial of Plaintiff's Request for U-Visa Certification Met all Relevant Statutory Requirements.

The FAC contains an independent cause of action for violation of procedural due process. Plaintiff alleges, in a conclusory fashion, that the denial of his request for U-visa certification falls below the minimum that the Constitution requires. (FAC 14:17-20.) As stated above, there is no constitutional right to U-visa certification and thus law enforcement departments can (and do) decline to issue U-visa certifications altogether without running afoul of the Constitution. *Catholic Charities CYO v. Chertoff*, 622 F. Supp. 2d 865, 887 (N.D. Cal. 2008) ("[T]he statute does not contain any mandatory language with regard to actions by law enforcement officials. Specifically, there is no statutory directive to law enforcement officials to issue [law enforcement certifications].")

Specifically, Plaintiff alleges that the denial of his request for certification violated his right

to procedural due process because the denial, among other alleged shortcomings, did not give him "a hearing or opportunity to respond," did not discuss the evidence Plaintiff submitted, and contained "no mechanism for administrative review or reconsideration." (FAC 14:8-15.) There is nothing in any applicable statute that requires Defendant Serrato or any certifying entity to provide what Plaintiff seeks when issuing a denial of a U-visa certification and the FAC does not cite to any statute or other authority containing such requirements. The only relevant statute governing what Defendant Serrato must do after denying a U-visa certification request is California Penal Code Section 679.10. subdivision (i)(2), which requires that Defendant Serrato to provide a "written explanation for the denial of the Form I-918 Supplement B certification. The written denial shall include specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate." (Pen. Code, § 679.10, subd. (i)(2).) As the FAC alleges, Plaintiff received a denial letter that states, in relevant part:

> Unfortunately, the [November 1, 2024] incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code, nor does it meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.l0(d) PC…." (FAC 9:19-23.)

Consistent with the requirement within California Penal Code Section 679.10 subdivision (i)(2), the letter lays out the reason behind the denial. Since there was no request for Plaintiff's assistance, (not surprising as what Plaintiff alleges is a civil tort), that is all the procedural due process the law requires. Plaintiff's cause of action for procedural due process violation should therefore be denied with prejudice.

D. Plaintiff's FAC Fails to Allege Sufficient Facts to Show Plausible "But-For" Causation Necessary for a Valid Claim of Retaliation.

To establish a viable First Amendment retaliation claim, Plaintiff must (1) allege that the alleged conduct would chill a person of ordinary firmness from future First Amendment activity and (2) allege that the officer's desire to chill his speech was a "but-for" cause of the alleged unlawful conduct. *Ford v. City of Yakima*, 706 F.3d 1188, 1193 (9th Cir. 2013). The Supreme

Court has defined "but for" causation as being "established whenever a particular outcome would not have happened 'but for' the purported cause." *Bostock v. Clayton Cnty.*, 590 U.S. 644, 656 (2020). "In other words, a but-for test directs [the Court] to change one thing at a time and see if the outcome changes. If it does, [there exists] a but-for cause." *Id.* Under this test, if the outcome (the adverse action) would not have occurred without the government official's retaliatory animus, then that animus was a but-for cause of the adverse action. *See id.* Conversely, if the government officials would have taken the same adverse action even in the absence of their animus or retaliatory motive arising from the plaintiff's speech, then the officials' animus was not a but-for cause of the adverse action, and there was no violation of the plaintiff's constitutional rights. *See id.*

Here, Plaintiff alleges that Defendant Serrato denied Plaintiff's request for U-visa certification to retaliate against Plaintiff for filing complaints and civil lawsuits against the CHP and its officers. (FAC 17:2-5.) Plaintiff alleges that several factors that he claims make retaliation "plausible." However, a review of the FAC shows that Plaintiff's allegations of retaliatory motive are not based on facts, but rather improper speculation and innuendo.

Plaintiff first alleges that Defendant Serrato acknowledged Plaintiff's engagement in "protected activity" when Defendant Serrato assigned an investigator to investigate Plaintiff's complaints in a letter dated March 26, 2026. (FAC 16:4-5.) As a basis for retaliatory motive, this is nonsensical. There is nothing improper in assigning someone to investigate complaints. Indeed, had Defendant Serrato not done so, Plaintiff would likely have accused Defendant of attempting a cover-up.

Plaintiff also alleges that the "tight temporal proximity" between Defendant Serrato assigning an investigator for Plaintiff's complaints and Defendant's denial of Plaintiff's request for U-visa certification is another factor suggesting retaliatory motive. (FAC 16:7-10.) Plaintiff does not elaborate on how the timing of these events shows retaliatory motive. Defendant notes that Plaintiff, not Defendant, was the one responsible for the timing of Plaintiff's request for U-visa certification and his complaints against CHP and Defendant's prompt action in response to both reflects a commitment to responding to Plaintiff in a timely manner, rather than suggesting

anything unlawful.

Plaintiff alleges that Defendant has an "institutional incentive" to deny the wrongdoings of CHP officers because Plaintiff is currently suing the CHP in two separate lawsuits. (FAC 12-17.) However, this does not mean that Defendant engaged in First Amendment retaliation and Plaintiff's decision to pursue legal action is not evidence of wrongdoing on the part of Defendant or Defendant's employees.

Plaintiff further alleges, without any evidence, that Defendant's reasoning for the denial of his request for U-visa certification is "pretextual." (FAC 16:19.) As stated above, Defendant explained the reasoning for the denial of U-visa certification in accordance with the requirements within Penal Code Section 679.10. subdivision (i)(2). Just because Plaintiff disagrees with Defendant's decision does not render Defendant's reasoning pretextual.

Finally, Plaintiff alleges that Defendant has a "conflict of roles." (FAC 16:25.) Again, this is not evidence of retaliatory motive. Moreover, Plaintiff made the decision to direct his request for U-visa certification to Defendant when Plaintiff could have requested certification from any authorized law enforcement, government or judicial agency. See 8 C.F.R. § 214.14 subd. (a)(2). Furthermore, Defendant is not the only certifying entity who has denied Plaintiff's request for U-visa certification. On June 18, 2026, Judge Mark Fickes of the Alameda Superior Court denied Plaintiff's request for U-visa certification via Court Order in Case No. 26CV168913. Thereafter, Plaintiff voluntarily dismissed his case against individual CHP defendants before Judge Fickes arising from the November 1, 2024, incident. (See Alameda Superior Court Case No. 26CV168913, Request for Dismissal filed August 21, 2026.)

As shown above, Plaintiff's allegations related to retaliation are not factual, but improper speculation based upon either Plaintiff's own actions or actions which have a more plausible non-retaliatory explanation. The FAC has failed to allege sufficient facts to make retaliatory motive plausible, especially given the difference between "qualifying criminal activity" and the civil complaints Plaintiff describes within the FAC.

E. Plaintiff's Cause of Action and Prayer for Declaratory Relief, Prayer for a Permanent Injunction, Prayer for Attorneys' Fees and Prayer for Punitive Damages Should Be Stricken.

Federal Rule of Civil Procedure Rule 12(f) authorizes the striking of all or any portion of a pleading that is "redundant" or "immaterial." The function of Rule 12(f) is to avoid the expenditure of time and money that must arise from litigating spurious issues by dispensing with those issues prior to trial. *Sidney-Vinstein v. A.H. Robins Co.* (9th Cir., 1983) 697 F. 2d 880, 885; *Fantasy Inc. v. Fogerty* (9th Cir., 1993) 984 F.2d 1524, 1527.

1. Declaratory Relief Is Not Proper Cause of Action Under the Facts Alleged Within the FAC.

Plaintiff's fourth cause of action seeks declaratory relief. (FAC 17: 13.) However, declaratory relief is not a proper cause of action under the facts alleged in the FAC. Plaintiff's claims are based on allegations regarding Defendant Serrato's past wrongs, a claim under the Declaratory Relief Act is improper and is duplicative of Plaintiff's other causes of action. *Mangindin v. Washington Mut. Bank,* 637 F.Supp.2d 700, 707 (N.D.Cal.2009) ("A claim for declaratory relief is unnecessary where an adequate remedy exists under some other cause of action."); *Ruiz v. Mortg. Elec. Registration Sys., Inc.,* 2009 WL 2390824, at *6 (E.D.Cal. Aug. 3, 2009) (dismissing claim for declaratory judgment where foreclosure already occurred such that the plaintiff was seeking "to redress past wrongs"); *Edejer v. DHI Mortg. Co.,* 2009 WL 1684714, at *11 (N.D.Cal. June 12, 2009) ("Plaintiff's declaratory relief cause of action fails because she seeks to redress past wrongs rather than a declaration as to future rights.").

2 Plaintiff Has Not Pled Facts to Justify Injunctive Relief.

The Prayer for Relief section of the FAC requests both a preliminary injunction and a permanent injunction. (FAC 19:21-28.) Plaintiff's request for injunctive relief should be stricken as Plaintiff has not pled facts justifying injunctive relief.

"A party seeking a preliminary injunction must establish: (1) that it is likely to succeed on the merits, (2) that it will likely suffer irreparable harm in the absence of injunctive relief, (3) that the balance of equities or hardships tips in its favor, and (4) that an injunction is in the public interest. *Winter v. NRDC, Inc.*, 555 U.S. 7, 20 (2008). Here, Plaintiff has not demonstrated any of

the above factors, as Plaintiff's FAC fails to allege any reason for injunctive relief and only describes the injunctive relief sought at the very end of the FAC in the Prayer for Relief section. (FAC 19:21-20:1.)

As the FAC contains no facts to support a request for injunctive relief, Plaintiff's prayer for injunctive relief should properly be stricken.

3. Plaintiff Has Not Alleged Facts Supporting Punitive Damages.

Plaintiff's request for punitive damages against Defendant Serrato should be stricken because Plaintiff has not alleged any facts giving rise to punitive damages. A Motion to Strike "may be used to strike any part of the Prayer for Relief when the damages sought are not recoverable as a matter of law." *Bureerong v. Uvawas*, 922 F.Supp. 1450, 1479 n. 34 (CD. Cal. 1996); *Wilkerson v. Butler*, 229 F.R.D. 166, 172 (E.D. Cal. 2005) (stating that "a motion to strike is appropriate to address requested relief, such as punitive damages, which is not recoverable as a matter of law.").

A jury can assess punitive damages in a federal Section 1983 action "when the defendant's conduct is shown to be motivated by evil motive or intent, or when it involves reckless or callous indifference to the federally protected rights of others." *Smith v. Wade*, 461 U.S. 30, 56 (1983).

Here, Plaintiff's FAC is devoid of any allegations that may support an award of punitive damages against Defendant Serrato. The sole reference to punitive damages within the FAC appears in the Prayer for Relief where Plaintiff wrongly alleges that Defendant Serrato was "deliberately indifferent" to unspecified constitutional rights. (FAC 19:2-3.) As stated above, the denial of U-Visa certification does not implicate any statutory or constitutional rights.

It is further unclear what Plaintiff means when he alleges that punitive damages are warranted due to Defendant Serrato's "willful refusal to engage with evidence proving his subordinates committed qualifying criminal activity." (FAC 19:4-5.) After expressly claiming that the FAC "does not seek to relitigate the officers' underlying conduct" during the November 1, 2024, incident, (FAC 2:16), Plaintiff's inclusion of punitive damages against Defendant Serrato within his Prayer for Relief based upon what other CHP officers allegedly did is not well-taken. Accordingly, Plaintiff's prayer for punitive damages found in Prayer for Relief within the FAC

should be stricken.

4. Plaintiff Is Not Entitled to Attorneys' Fees as a *Pro Se* Litigant.

Plaintiff seeks attorneys' fees as part of his Prayer for Relief. (FAC 20:9-10.) While 42 U.S.C. § 1988 allows for attorney's fees for plaintiffs who prevail in Section 1983 actions, an award of attorneys' fees is not available to pro se litigants. See *Kay v. Ehrler*, 499 U.S. 432, 438 (1991). Accordingly, Plaintiff's prayer for attorneys' fees found in Prayer for Relief within the FAC should be stricken.

F. Defendant Serrato is Entitled to Qualified Immunity as to Each Claim Brought Against Him in his Personal Capacity as No "Clearly Established" Law Existed to Place Defendant on Notice that a Denial of U-Visa Certification in the Circumstances Alleged Within the FAC Would Violate Any Constitutional Right.

"[Q]ualified immunity protects government officials 'from liability for civil damages insofar as their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known.'" *Pearson v. Callahan*, 555 U.S. 223, 231 (2009). "When properly applied, it protects all but the plainly incompetent or those who knowingly violate the law." *Ashcroft v. al Kidd*, 563 U.S. 731, 743 (2011) (simplified). "Under [Supreme Court] precedents, law enforcement personnel *are entitled to qualified immunity* under §1983 *unless* (1) they violated a federal statutory or constitutional right, and (2) the unlawfulness of their conduct was 'clearly established at the time.'" *District of Columbia v. Wesby*, 583 U.S. 48, 62-63 (2018) (emphasis added). A plaintiff must overcome both prongs of qualified immunity. *Felarca v. Birgeneau*, 891 F.3d 809, 815 (9th Cir. 2018); *see also Smith v. Adepa*, 81 F.4th 994, 1004 n.4 (9th Cir. 2023) ("[T]he burden is not on the officers to prove they fit perfectly within the facts of a case granting qualified immunity; the burden is on the plaintiff to show a violation of a clearly established right in the specific circumstances at issue.").

Here, the FAC alleges that qualified immunity "does not apply." (FAC 18:9.) However, Plaintiff does not identify any case law that would have placed Defendant Serrato on notice that it would be unlawful to deny Plaintiff's request for U-visa certification. Instead, Plaintiff alleges

that *Shanks v. Dressel,* 540 F.3d 1082 (9th Cir. 2008) established the right to "non-arbitrary decision-making by state officials exercising mandatory statutory duties." (FAC 18:10.) However, the *Shanks* case involves the enforcement of city zoning provisions and has nothing to do with U-visa certification. *Id.* Moreover, the *Shanks* case held its plaintiffs failed to state a viable due process claim based upon executive action because there is an "exceedingly high burden required to show [government actors] behaved in a constitutionally arbitrary fashion." *Id.* 1088. To the extent that *Shanks* has any application to the case here, it shows that Defendant did *not* violate Plaintiff's constitutional rights. Moreover, while it is true that the right of Plaintiff to engage in protected speech without fear of retaliation is clearly established, the Supreme has cautioned that "'courts must not define clearly established law at a high level of generality[.]" *Ashcroft v. Al-Kidd* (2011) 563 U.S. 731, 742. A rule is too general if the unlawfulness of [the actor's] conduct does not follow immediately from the conclusion that the rule was firmly established." *District of Columbia v. Wesby*, 583 U.S. 48, 64.

As Plaintiff has not identified any case law which would put Defendant Serrato on notice that his denial of Plaintiff's U-visa certification in the circumstances as alleged within the FAC would be unlawful, Defendant Serrato is entitled to qualified immunity as to all of Plaintiff's claims against him in his personal capacity.

G. Leave To Amend Should Be Denied as Futile.

Upon dismissal of any claims, the court must tell a *pro se* plaintiff of a pleading's deficiencies and provide an opportunity to cure such defects. *Garity v. APWU Nat'l Lab. Org.*, 828 F.3d 848, 854 (9th Cir. 2016). However, if amendment would be futile, no leave to amend need be given. *Lathus v. City of Huntington Beach*, 56 F.4th 1238, 1243 (9th Cir. 2023). A court may consider facts outside of the complaint when deciding whether to grant leave to amend. *Broam v. Bogan*, 320 F.3d 1023, 1026 n.2 (9th Cir. 2003).

Not only has Plaintiff already amended his complaint once before this Court, Plaintiff has now filed at least *three* separate lawsuits against the CHP and its individual officers based upon allegations arising from the November 1, 2024, incident, not including an additional petition for a writ of mandate against Defendant Serrato seeking U-visa certification, which is currently pending. Plaintiff voluntarily dismissed one of his prior actions in the Eastern District Court, *Newanforbi v. State of California, et al.,* Case No. 2:25-CV-1460-DC-CSK PS, following the Magistrate Judge's Report and Recommendation that Plaintiff's Complaint be dismissed with prejudice, before the District Court had officially adopted the Report and Recommendation. (See Eastern District Court, Case No. 2:25-CV-1460-DC-CSK PS; ECF No. 12, Report and Recommendation dated April 20, 2025.) Plaintiff also recently dismissed a state court case arising from the same incident, filed in the Alameda Superior Court, after the Judge in that case denied Plaintiff's request for U-visa certification on the same facts. (See Alameda Superior Court Case ,*Newanforbi, v. Meza-Gonzalez, et al*., Case No. 26CV168913.) After dismissing the prior two lawsuits, Plaintiff has now filed a third action against CHP officers with substantively the same allegations. (See Related Case, *Nforbi v. Meza-Gonzalez et al*., No. 3:26-cv-08271-PHK.) Defendant offers the above as context to show why leave to amend should not be granted. Plaintiff's prior litigation shows that, despite being *pro se,* Plaintiff is a litigant who has substantial experience with the legal process. This is not a case where Plaintiff has viable claims but is hampered by his legal lack of knowledge. Rather, Plaintiff has adopted a strategy of filing multiple lawsuits based on the same substantive claims, only to strategically dismiss each suit after a court finds his claims to be without merit to file new lawsuits elsewhere. It is now long past time for Plaintiff's meritless litigation against the CHP and its employees to end.

CONCLUSION

For the foregoing reasons, Defendant respectfully requests that the Court dismiss all claims within Plaintiff's FAC with prejudice and strike Plaintiff's cause of action for declaratory relief, Plaintiff's prayer for declaratory and injunctive relief, Plaintiff's request for attorney's fees and Plaintiff's prayer for punitive damages against Defendant Serrato in his personal capacity.

Dated: August 26, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General

/s/ Haiyang A. Li

HAIYANG A. LI
Deputy Attorney General
Attorneys for Defendant
Captain G. Serrato, in both his individual and official capacities

DECLARATION OF SERVICE BY E-MAIL

Case Name:	Brendan N. Newanforbi v. Captain G. Serrato, et al.
Case Number:	4:26-cv-05953-ASK
Party Represented:	*Defendant, Captain G. Serrato, in both his individual and official capacities*

Declaration of Electronic Service

1. I am at least 18 years of age and not a party to this matter.

2. I am employed in the Office of the Attorney General of the State of California. My business address is 300 South Spring Street, Suite 1702, Los Angeles, CA 90013-1230, County of Los Angeles.

3. My electronic service address is Diana.Montufar@doj.ca.gov.

4. On August 26, 2026, I electronically served the following document[s]:

    a. **DEFENDANT CAPTAIN G. SERRATO'S NOTICE OF MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT AND/OR MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES**

5. I electronically served the aforementioned document[s] by emailing them to the following individual[s]:

Brendan Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
E-mail Address: BNN.CDL@gmail.com
Plaintiff in Pro Per

I declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing is true and correct, and that this declaration was executed on August 26, 2026.

Diana Montufar
Declarant

Diana Montufar
Signature

OK2026603012
68685318